

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL
FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL
APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE
ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-
NEVER-OCCURRED**

Never-Filed Counterfactual Motion for Limited Sealing

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Filed: February 12, 2026

DOE moves for limited sealing of three anticipated controlled brief counterparts in this isolated exercise and, conditionally, one later public/sealed joint supplemental pair if the Court orders joint supplemental briefing on the same controlled subjects. The requested relief is confined to passages that use harmless sealed labels to represent the operational and human-function fields described in the corrected premise. DOE does not seek to close the docket, conceal the existence of a filing, or restrict any public counterpart.

The motion is prospective because the briefs have not yet been submitted. It identifies the anticipated materials now so that public notice and access procedures precede any controlled filing. The public opening, response, and reply will remain available in full except for conspicuous category notices replacing the defined fictional fields.

The interest asserted is protection of the adjudicative boundary surrounding nonpublic implementation relationships and limited physical-safety functions. Even though every controlled value is inert, the paired format allows the exercise to test sealing procedure without including a real secret. DOE asks the Court to apply document-specific access, a fixed duration, and immediate revocation capability.

This motion exists only on the never-filed docket. It requests no order affecting the actual appeal or district record.

Materials Identified with Particularity

The first pair is the fourteen-page counterfactual opening brief. Its public copy will replace asserted decision conditions, response ordering, guideline values, duty roles, safety references, and contact categories with descriptive notices. The controlled copy will use inert labels at the corresponding semantic subjects.

The second pair is the fourteen-page counterfactual response brief. Its principal controlled subject is the page-level line-review account. The sealed side will display dummy field categories only where necessary to explain why a retained relationship differs from released administration. General legal argument and record history will remain public.

The third pair is the eight-page counterfactual reply brief. Its controlled subject includes the narrow-sealing discussion. The public version will disclose the proposed duration, alternatives, and access mechanics while masking only fabricated field examples. The controlled counterpart will contain no operational value.

The conditional fourth class is limited to one joint supplemental brief pair that a later court order may require. It is covered only if both parties address the same controlled field subjects, file an equal-page public counterpart, and obtain a disclosure-specific judicial grant for that pair. This condition neither predicts that supplemental briefing will occur nor authorizes any other later filing.

Each public and sealed counterpart will have equal logical pages and page-aligned subjects, but independently worded prose. The corrected-premise notice, confidentiality certificate, argument notice, opinions, judgments, and unmatched later papers remain public on the isolated training docket.

Interest Supporting Limited Closure

The corrected premise distinguishes general descriptions from implementation detail. Public discussion may identify that a decision tree contains a predicate or ordering relationship and that a matrix contains a human-function field. The asserted interest concerns the authentic content and placement of such a value, not the legal category or existence of the record.

For 7(E), DOE states that exposure of genuine trigger order or implementation relations could reveal how a fictional law-enforcement exercise organizes decisions. A guideline value receives a separate circumvention explanation. For limited 7(F) fields, the premise supplies a functional link between authentic disclosure and interference with a person performing a protective role.

This training corpus contains no authentic value, so disclosure could not produce those harms. The Court nevertheless needs a controlled side to exercise authorization, projection, and revocation rules. Inert labels preserve the structural distinction without adding a technique, identity, route, interval, or vulnerability.

The motion therefore asks for closure only of the controlled counterparts. It does not rest on embarrassment, agency preference, or a conclusory designation. Public access to the arguments, authorities, chronology, relief requested, and explanatory categories remains the central condition of the request.

Less Restrictive Alternatives

DOE considered complete public filing, word-level redaction, narrative summary, delayed disclosure, and broad sealing. Complete public filing is unnecessary for the controlled copies because corresponding public briefs will provide every legal proposition and replace only the defined categories. Broad sealing would obscure far more than the asserted interest and is rejected.

Word-level notices are selected for the public counterparts. They visibly state whether the omitted category is a fictional decision condition, response order, escalation value, duty role, safety reference, or contact channel. The notices do not encode omitted length. Narrative passages explain the assigned exemption and harm without reproducing a value.

Delayed disclosure alone would not demonstrate session-bound access during the litigation exercise. The proposed paired method permits immediate public review while reserving controlled comparison for authorized sessions. At the end of the fixed period, the Court must reassess whether any training reason remains for closure.

No legal authority, procedural fact, record total, party position, or requested disposition will be removed from the public briefs. If a controlled paragraph can be described safely, its substance will be stated independently on the public side. These measures are narrower than sealing an entire filing without a usable counterpart.

Duration, Grants, and Revocation

Requested sealing expires thirty days after issuance of the appellate mandate unless the Court enters an earlier or later supported order. Any participant may request reconsideration upon changed circumstances. The fixed period avoids indefinite closure and gives the clerk time to complete post-mandate access review.

The public-only projection remains the default. A grant must identify one disclosure, the authorized session, the participant, and the exact resolved pack closure. Authorization for the opening brief does not unlock the response or reply. Merely appearing on the confidentiality certificate creates no grant.

On every authorized open, the sealed asset remains deferred until content-addressed storage verifies its path, expected size, digest, readability, and page count. A successful check permits a leased snapshot for that session. A failed check exposes nothing and records the denial without substituting stale bytes.

Revocation removes the controlled row and returns the viewer to the public counterpart. The stable logical subject continues to resolve publicly, so argument references do not break when access ends. No public response includes sealed location or integrity metadata. These controls implement narrower access than downloading or permanently attaching every sealed document to an account.

Requested Order and Certification

DOE asks the Court to permit controlled submission of the three identified sealed counterparts only when the matching public copy and the separate confidentiality certificate are present. The same support may reach the conditional joint supplemental pair only if the Court first orders that briefing and issues a judicial grant naming that disclosure. The order should identify each covered pair, incorporate the stated duration, and preserve authority to narrow or terminate sealing at any time.

The public versions must remain available without a session grant. The clerk should reject a sealed counterpart whose page count differs from its public mate, whose disclosure lacks a required supporting item, or whose current content-addressed bytes cannot be verified. For the conditional class, the grant must bind the exact disclosure and resolved closure; every open must repeat the path, size, digest, readability, and page-count checks, and revocation must remove the sealed row. The ruling extends to no other later document.

Counsel certifies that the motion is publicly filed on the isolated training docket and that its subject has been described without revealing any purported protected value. Open Grid counsel received the motion electronically on February 12, 2026. The parties may present different legal positions on sealing while using the same access protocol.

This document and any resulting order are counterfactual. They were never entered in the actual appeal. Respectfully submitted by Corin Pell, fictional counsel for DOE.

Corin Pell Fictional Counsel for DOE